EMERGENCY PROVISIONS

THREE EMERGENCIES → ARTICLE 352 PROCEDURE → AMENDMENT HISTORY → FEDERAL EFFECTS → RIGHTS FIREWALL → ARTICLE 356 CASES → ARTICLE 360 → PYQS → ANSWER SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

00

STAGE 00

THREE EMERGENCIES AND CONSTITUTIONAL PURPOSE

PART XVIII: ARTICLES 352-360 | 352 NATIONAL SECURITY | 356 STATE CONSTITUTIONAL BREAKDOWN | 360 FINANCIAL STABILITY | METHOD | TRIGGER -> WRITTEN ADVICE/MATERIAL -> PARLIAMENTARY CONTROL -> DURATION -> EFFECTS -> EXIT | EMERGENCY POWER PRESERVES CONSTITUTIONAL GOVERNMENT; IT IS NOT AN EXTRA-CONSTITUTIONAL REGIME.

CONSTITUTIONAL BASIS

- PART XVIII: ARTICLES 352-360
- 352 national security | 356 State constitutional breakdown | 360 financial stability

POWER / PROCEDURE

- METHOD
- trigger -> written advice/material -> parliamentary control -> duration -> effects -> exit

CHECK / LIMIT

- Emergency power preserves constitutional government; it is not an extra-constitutional regime.

DEMOCRATIC / EXAM IMPACT

- trigger -> written advice/material -> parliamentary control -> duration -> effects -> exit
- Emergency power preserves constitutional government; it is not an extra-constitutional regime.

MECHANISM / VERDICT — The analysis moves from part xviii: articles 352-360 through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Emergency power preserves constitutional government; it is not an extra-constitutional regime.

01

STAGE 01

ARTICLE 352 TRIGGER, APPROVAL, RENEWAL AND REVOCATION

TRIGGER: WAR | EXTERNAL AGGRESSION | ARMED REBELLION | IMMINENT DANGER | CABINET DECISION IN WRITING -> PRESIDENT -> WHOLE OR PART OF INDIA | APPROVAL: BOTH HOUSES WITHIN ONE MONTH -> SPECIAL MAJORITY | CONTINUANCE: SIX-MONTH BLOCKS -> SAME SPECIAL MAJORITY | EXIT: PRESIDENT REVOKES; LOK SABHA SIMPLE-MAJORITY DISAPPROVAL REQUIRES REVOCATION | ONE-TENTH OF LOK SABHA MEMBERS CAN REQUIRE A SPECIAL SITTING WITHIN 14 DAYS.

TRIGGER: war | external aggression | armed rebellion | imminent danger → Cabinet decision in writing -> President -> whole or part of India → APPROVAL: both Houses within one month -> special majority → CONTINUANCE: six-month blocks -> same special majority → EXIT: President revokes; Lok Sabha simple-majority disapproval requires revocation

CONSTITUTIONAL BASIS

- TRIGGER: war | external aggression | armed rebellion | imminent danger
- Cabinet decision in writing -> President -> whole or part of India

POWER / PROCEDURE

- APPROVAL: both Houses within one month -> special majority
- CONTINUANCE: six-month blocks -> same special majority

CHECK / LIMIT

- EXIT: President revokes; Lok Sabha simple-majority disapproval requires revocation
- One-tenth of Lok Sabha members can require a special sitting within 14 days.

DEMOCRATIC / EXAM IMPACT

- EXIT: President revokes; Lok Sabha simple-majority disapproval requires revocation
- One-tenth of Lok Sabha members can require a special sitting within 14 days.

MECHANISM / VERDICT — The analysis moves from trigger: war | external aggression | armed rebellion | imminent danger through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: One-tenth of Lok Sabha members can require a special sitting within 14 days.

02

STAGE 02

DECLARATION AND AMENDMENT CHRONOLOGY WITH CURRENT STATUS

1962 EXTERNAL AGGRESSION -> REVOKED 1968 | 1971 EXTERNAL AGGRESSION -> CONTINUED ALONGSIDE 1975 PROCLAMATION | 1975 INTERNAL DISTURBANCE -> REVOKED 1977 | 38TH: ATTEMPTED SATISFACTION IMMUNITY | 42ND: TERRITORIAL AND WIDER-EFFECT CHANGES | 44TH: ARMED REBELLION, CABINET WRITING, SPECIAL MAJORITY, LIBERTY AND REVIEW

1962 external aggression -> revoked 1968 → 1971 external aggression -> continued alongside 1975 proclamation → 1975 internal disturbance -> revoked 1977 → 38TH: attempted satisfaction immunity → 42ND: territorial and wider-effect changes

CONSTITUTIONAL BASIS

- 1962 external aggression -> revoked 1968
- 1971 external aggression -> continued alongside 1975 proclamation

POWER / PROCEDURE

- 1975 internal disturbance -> revoked 1977
- 38TH: attempted satisfaction immunity

CHECK / LIMIT

- 42ND: territorial and wider-effect changes
- 44TH: armed rebellion, Cabinet writing, special majority, liberty and review

DEMOCRATIC / EXAM IMPACT

- CURRENT 28 AUG 2026: no National Emergency is in force.

MECHANISM / VERDICT — The analysis moves from 1962 external aggression -> revoked 1968 through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT 28 AUG 2026: no National Emergency is in force.

03

STAGE 03

NATIONAL EMERGENCY EFFECTS ON FEDERALISM AND INSTITUTIONS

ARTICLE 353: UNION DIRECTIONS EXPAND: PARLIAMENT GAINS STATE-FIELD COMPETENCE | ARTICLE 250 LAWS -> SIX-MONTH TAIL AFTER EMERGENCY | ARTICLE 354 -> TEMPORARY REVENUE-DISTRIBUTION ORDER WITH FINANCIAL-YEAR LIMIT | LOK SABHA / ASSEMBLY TERMS -> PARLIAMENT MAY EXTEND ONE YEAR AT A TIME | LIMIT | STATES, LEGISLATURES AND HIGH COURTS CONTINUE: TEMPORARY UNION WEIGHTING, NOT ABOLITION.

CONSTITUTIONAL BASIS

- ARTICLE 353: Union directions expand: Parliament gains State-field competence
- ARTICLE 250 laws -> six-month tail after Emergency

POWER / PROCEDURE

- ARTICLE 354 -> temporary revenue-distribution order with financial-year limit
- LOK SABHA / ASSEMBLY TERMS -> Parliament may extend one year at a time

CHECK / LIMIT

- LIMIT
- States, legislatures and High Courts continue: temporary Union weighting, not abolition.

DEMOCRATIC / EXAM IMPACT

- LIMIT
- States, legislatures and High Courts continue: temporary Union weighting, not abolition.

MECHANISM / VERDICT — The analysis moves from article 353: union directions expand: parliament gains state-field competence through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: States, legislatures and High Courts continue: temporary Union weighting, not abolition.

04

STAGE 04

ARTICLES 358 AND 359 RIGHTS FIREWALL

ARTICLE 358 | AUTOMATIC | ARTICLE 19 ONLY | WAR/EXTERNAL AGGRESSION | EMERGENCY-RELATED RECITAL/ACTION | ARTICLE 359 | PRESIDENTIAL ORDER | NAMED RIGHTS' COURT-ENFORCEMENT ROUTE | STATED AREA/PERIOD | PERMANENT FIREWALL | ARTICLES 20 AND 21 REMAIN ENFORCEABLE; UNRELATED ILLEGALITY GETS NO EMERGENCY SHIELD.

CONSTITUTIONAL BASIS

- ARTICLE 358
- automatic | Article 19 only | war/external aggression | emergency-related recital/action

POWER / PROCEDURE

- ARTICLE 359
- presidential order | named rights' court-enforcement route | stated area/period

CHECK / LIMIT

- PERMANENT FIREWALL
- Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

DEMOCRATIC / EXAM IMPACT

- PERMANENT FIREWALL
- Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

MECHANISM / VERDICT — The analysis moves from article 358 through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

05

STAGE 05

ADM JABALPUR (1976), KHANNA AND K.S. PUTTASWAMY (2017)

ADM JABALPUR (1976) MAJORITY | DENIED HABEAS ENFORCEMENT ROUTE DURING THE OPERATIVE ARTICLE 359 ORDER | JUSTICE H.R. KHANNA -> LIBERTY IS NOT EXECUTIVE GRACE | 44TH AMENDMENT -> ARTICLES 20 AND 21 EXCLUDED FROM ARTICLE 359 | K.S. PUTTASWAMY (2017) -> ADM JABALPUR (1976) MAJORITY WRONGLY DECIDED AND OVERRULED | HISTORICAL WARNING, NOT CURRENT LAW.

ADM JABALPUR (1976) MAJORITY → denied habeas enforcement route during the operative Article 359 order → JUSTICE H.R. KHANNA -> liberty is not executive grace → 44TH AMENDMENT -> Articles 20 and 21 excluded from Article 359 → K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled

CONSTITUTIONAL BASIS

- ADM JABALPUR (1976) MAJORITY
- denied habeas enforcement route during the operative Article 359 order

POWER / PROCEDURE

- JUSTICE H.R. KHANNA -> liberty is not executive grace
- 44TH AMENDMENT -> Articles 20 and 21 excluded from Article 359

CHECK / LIMIT

- K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled
- The ADM Jabalpur (1976) majority is a historical warning, not current law.

DEMOCRATIC / EXAM IMPACT

- K.S. PUTTASWAMY (2017) -> ADM Jabalpur (1976) majority wrongly decided and overruled
- The ADM Jabalpur (1976) majority is a historical warning, not current law.

MECHANISM / VERDICT — The analysis moves from ADM Jabalpur (1976) majority through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The ADM Jabalpur (1976) majority is a historical warning, not current law.

06

STAGE 06

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

ARTICLE 356: GOVERNOR REPORT OR OTHERWISE -> OBJECTIVE MATERIAL -> PROCLAMATION | APPROVAL: TWO MONTHS, SIMPLE MAJORITY | RENEWAL: SIX MONTHS | MAXIMUM: THREE YEARS | BEYOND ONE YEAR: QUALIFYING ARTICLE 352 EMERGENCY + ECI CERTIFICATION | ARTICLE 357: PARLIAMENT MAY CONFER AND PERMIT DELEGATION OF STATE LEGISLATIVE POWER | EXECUTIVE ASSUMED; ASSEMBLY SUSPENDED/DISSOLVED; HIGH COURT AND FUNDAMENTAL RIGHTS CONTINUE | ARTICLE 365 MAY SUPPLY MATERIAL, NEVER AN AUTOMATIC TRIGGER.

ARTICLE 356: Governor report or otherwise -> objective material -> proclamation → APPROVAL: two months, simple majority | renewal: six months | maximum: three years → BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification → ARTICLE 357: Parliament may confer and permit delegation of State legislative power → Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue

CONSTITUTIONAL BASIS

- ARTICLE 356: Governor report or otherwise -> objective material -> proclamation
- APPROVAL: two months, simple majority | renewal: six months | maximum: three years

POWER / PROCEDURE

- BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification
- ARTICLE 357: Parliament may confer and permit delegation of State legislative power

CHECK / LIMIT

- Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue
- Article 365 may supply material, never an automatic trigger.

DEMOCRATIC / EXAM IMPACT

- Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue
- Article 365 may supply material, never an automatic trigger.

MECHANISM / VERDICT — The analysis moves from article 356: governor report or otherwise -> objective material -> proclamation through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 365 may supply material, never an automatic trigger.

07

STAGE 07

S.R. BOMMAI (1994), RAMESHWAR PRASAD (2006) AND CURRENT ARTICLE 356 CONTROL

S.R. BOMMAI (1994) | REVIEW | RELEVANT MATERIAL | FLOOR TEST | DISSOLUTION AFTER APPROVAL | RESTORATION | FEDERALISM | RAMESHWAR PRASAD (2006) | BIHAR DISSOLUTION INVALID; ASSEMBLY NOT RESTORED BECAUSE ELECTION PROCESS HAD ADVANCED | WHY USE DECLINED | COURTS + COALITIONS + REGIONAL PARTIES + SARKARIA/PUNCHHI NORMS

CONSTITUTIONAL BASIS

- S.R. BOMMAI (1994)
- review | relevant material | floor test | dissolution after approval | restoration | federalism

POWER / PROCEDURE

- RAMESHWAR PRASAD (2006)
- Bihar dissolution invalid; Assembly not restored because election process had advanced

CHECK / LIMIT

- WHY USE DECLINED
- courts + coalitions + regional parties + Sarkaria/Punchhi norms

DEMOCRATIC / EXAM IMPACT

- CURRENT: Manipur President's Rule 13 Feb 2025 -> revoked 4 Feb 2026.

MECHANISM / VERDICT — The analysis moves from S.R. Bommai (1994) through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT: Manipur President's Rule 13 Feb 2025 -> revoked 4 Feb 2026.

08

STAGE 08

ARTICLE 360 FINANCIAL EMERGENCY

TRIGGER: FINANCIAL STABILITY OR CREDIT OF INDIA OR ANY PART THREATENED | APPROVAL: BOTH HOUSES WITHIN TWO MONTHS BY SIMPLE MAJORITY | DURATION: NO PERIODIC RENEWAL; PRESIDENT MAY REVOKE | DIRECTIONS: FINANCIAL PROPRIETY | SALARY REDUCTIONS | STATE MONEY/FINANCIAL BILLS RESERVED | UNION SALARY DIRECTION CAN INCLUDE SUPREME COURT AND HIGH COURT JUDGES | STATUS: NEVER PROCLAIMED; 1991 WAS MANAGED WITHOUT ARTICLE 360.

TRIGGER: financial stability or credit of India or any part threatened → APPROVAL: both Houses within two months by simple majority → DURATION: no periodic renewal; President may revoke → DIRECTIONS: financial propriety | salary reductions | State Money/financial Bills reserved → Union salary direction can include Supreme Court and High Court judges

CONSTITUTIONAL BASIS

- TRIGGER: financial stability or credit of India or any part threatened
- APPROVAL: both Houses within two months by simple majority

POWER / PROCEDURE

- DURATION: no periodic renewal; President may revoke
- DIRECTIONS: financial propriety | salary reductions | State Money/financial Bills reserved

CHECK / LIMIT

- Union salary direction can include Supreme Court and High Court judges
- STATUS: never proclaimed; 1991 was managed without Article 360.

DEMOCRATIC / EXAM IMPACT

- Union salary direction can include Supreme Court and High Court judges
- STATUS: never proclaimed; 1991 was managed without Article 360.

MECHANISM / VERDICT — The analysis moves from trigger: financial stability or credit of india or any part threatened through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS: never proclaimed; 1991 was managed without Article 360.

09

STAGE 09

THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES

352: SPECIAL MAJORITY | SIX-MONTH RENEWAL | NATIONAL/FEDERAL/RIGHTS EFFECTS | 356: SIMPLE MAJORITY | SIX-MONTH RENEWAL | THREE-YEAR MAXIMUM | STATE MACHINERY | 360: SIMPLE MAJORITY | NO RENEWAL CYCLE | FINANCIAL DIRECTIONS | ESCALATION LADDER | WARNING -> CONSULTATION -> FLOOR TEST/COURT -> TARGETED ORDINARY LAW -> EMERGENCY | SARKARIA AND PUNCHHI RECOMMENDATIONS GUIDE RESTRAINT BUT ARE NOT BINDING LAW.

CONSTITUTIONAL BASIS

- 352: special majority | six-month renewal | national/federal/rights effects
- 356: simple majority | six-month renewal | three-year maximum | State machinery

POWER / PROCEDURE

- 360: simple majority | no renewal cycle | financial directions
- ESCALATION LADDER

CHECK / LIMIT

- warning -> consultation -> floor test/court -> targeted ordinary law -> Emergency
- Sarkaria and Punchhi recommendations guide restraint but are not binding law.

DEMOCRATIC / EXAM IMPACT

- warning -> consultation -> floor test/court -> targeted ordinary law -> Emergency
- Sarkaria and Punchhi recommendations guide restraint but are not binding law.

MECHANISM / VERDICT — The analysis moves from 352: special majority | six-month renewal | national/federal/rights effects through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Sarkaria and Punchhi recommendations guide restraint but are not binding law.

10

STAGE 10

SIX PYQS AND PRELIMS FIREWALLS

PYQ ROUTES | 2018 FINANCIAL EMERGENCY + ARTICLE 356 CONSEQUENCES | 2020 CENTRALISING LEGISLATION | 2023 ARTICLE 355/DETENTION/POTA + ARTICLE 356 DECLINE | 2024 CONSTITUTION-PART IDENTIFICATION | FIREWALLS | ARMED REBELLION != INTERNAL DISTURBANCE | 358 != 359 | 20/21 PROTECTED

CONSTITUTIONAL BASIS

- PYQ ROUTES
- 2018 Financial Emergency + Article 356 consequences

POWER / PROCEDURE

- 2020 centralising legislation | 2023 Article 355/detention/POTA + Article 356 decline
- 2024 Constitution-Part identification

CHECK / LIMIT

- FIREWALLS
- armed rebellion != internal disturbance | 358 != 359 | 20/21 protected

DEMOCRATIC / EXAM IMPACT

- 352 special majority | 356/360 simple | 360 never used | High Court not assumed.

MECHANISM / VERDICT — The analysis moves from pyq routes through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 352 special majority | 356/360 simple | 360 never used | High Court not assumed.

11

STAGE 11

MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT

10 MARKS: PROVISION -> TRIGGER -> PROCEDURE -> EFFECTS -> STATUS/VERDICT | 15 MARKS: THESIS -> LEGAL FACTORS -> POLITICAL FACTORS -> CASE/COMMISSION -> VERDICT | 20 MARKS: 352 + RIGHTS + 356 + 360 -> SAFEGUARDS -> LIMITS -> GRADED CONCLUSION | EVIDENCE CHAIN | CLAIM -> ARTICLE/AMENDMENT -> MECHANISM -> CASE/HISTORY -> QUALIFICATION | VERDICT: EMERGENCY IS LEGITIMATE TEMPORARY CONSTITUTIONAL SELF-DEFENCE ONLY WHEN REVIEWABLE

CONSTITUTIONAL BASIS

- 10 MARKS: provision -> trigger -> procedure -> effects -> status/verdict
- 15 MARKS: thesis -> legal factors -> political factors -> case/commission -> verdict

POWER / PROCEDURE

- 20 MARKS: 352 + rights + 356 + 360 -> safeguards -> limits -> graded conclusion
- EVIDENCE CHAIN

CHECK / LIMIT

- claim -> Article/amendment -> mechanism -> case/history -> qualification
- VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable

DEMOCRATIC / EXAM IMPACT

- and directed toward restoration of ordinary democratic government.

MECHANISM / VERDICT — The analysis moves from 10 marks: provision -> trigger -> procedure -> effects -> status/verdict through constitutional procedure and safeguards to a qualified emergency outcome.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: and directed toward restoration of ordinary democratic government.

E

EXTRA

OPTIONAL ENRICHMENT — NOT REQUIRED FOR A COMPETENT CORE ANSWER

OPTIONAL ONLY | CONSTITUENT ASSEMBLY | SAFETY VALVE | CORE ALREADY COMPLETE

CRITICISM

- Constitutional dictatorship and totalitarian-risk arguments.

DEFENCE

- Life-breath and safety-valve arguments.

OPTIONAL STATUS — This enrichment follows the complete Core and is unnecessary for a competent Core answer.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Use criticism only after stating the exact emergency mechanism and safeguards.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels